

THE SAVINGS BANK MUTUAL LIFE INSURANCE COMPANY OF MASSACHUSETTS INDEPENDENT PRODUCER AGREEMENT

This Independent Producer Agreement (the "Agreement"), dated _____ (the "Effective Date") is by and between The Savings Bank Mutual Life Insurance Company of Massachusetts, a corporation duly organized under the laws of the Commonwealth of Massachusetts, with a usual place of business at One Linscott Road, Woburn, MA ("SBLI"), _____, located at _____ (the "Producer"), and _____, located at _____ (the "General Agent or NMO"). Each of SBLI and Producer are referred to herein as a "Party," and together, the "Parties."

The Producer is a: Corporation ☐ Partnership ☐ Individual ☐

I. Authorization, Duties, Limitations of Authority & Certification

- A. Authorization and Appointment: The Parties agree that subject to the terms and conditions set forth herein, SBLI shall appoint Producer as SBLI's Producer to submit applications to SBLI for SBLI's individual life insurance policies, accidental death policies and annuity contracts (collectively, the "Products" or individually a "Product") and Producer shall accept said appointment subject to the terms and conditions set forth herein. This appointment is expressly contingent upon Producer's successful completion of all SBLI requirements for appointment approval including: a completed and fully executed Producer Agreement, background screening, licensing verification and SBLI's final approval.
- B. Duties of Producer: Producer shall:
1. Comply with all applicable state licensing requirements;
 2. Promptly transmit completed SBLI Product applications to SBLI;
 3. Render services to SBLI policyholders and beneficiaries as required by SBLI;
 4. Promptly remit to SBLI all monies received as full or partial premium payment and until such monies and securities are remitted, hold them in trust for the benefit of SBLI;
 5. Promptly forward to SBLI all information concerning SBLI's underwriting of any risk;
 6. Maintain proper business records and accounts of all business transacted hereunder, as reasonably required by SBLI, which shall be SBLI's property, and make such business records and accounts available to SBLI, upon reasonable notice, during SBLI's business hours;
 7. Allow SBLI, its representatives and accountants, to conduct at any time, with prior written notice, whatever audit of Producer's business records with respect to all business transacted hereunder;
 8. Comply with the continuing education requirements for independent insurance producers under applicable law;
 9. Promote SBLI's interests as contemplated by this Agreement;
 10. Conduct oneself to not adversely affect SBLI's business or reputation;
 11. Comply with all SBLI rules, procedures and bulletins;
 12. Notify SBLI of any consumer complaint, regulatory investigation, disciplinary action, or judicial proceeding involving Producer or any other SBLI Producer with respect to the marketing or sale of SBLI's Products, or any activity in connection therewith; and
 13. Comply with all federal, state and local laws, regulations and rules, including:
 - a. Title V of the Gramm-Leach-Bliley Act ("GLBA") (15 U.S.C. § 6801 et seq.);
 - b. USA Patriot Act of 2001 (Pub. L. No. 107-56), including, without limitation, the requirement to develop and implement anti-money laundering and customer identification programs;
 - c. Applicable state and federal "Do Not Call" laws and regulations, including, but not

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- limited to, the National "Do Not Call" Registry rules under the Telephone Consumer Protection Act of 1991 ("TCPA") (Pub. L. No. 102-243 and 47 U.S.C. § 227 et seq.);
- d. Restrictions on sending commercial faxes found in the TCPA and regulations enacted in accordance with TCPA; and
 - e. The various state and federal restrictions on the use of electronic mail and the Controlling the Assault of Non-Solicited Pornography and Marketing Act of 2003 ("CAN-SPAM Act") (15 U.S.C. § 7708).
- C. Limitations of Producer's Authority: Producer shall not have authority to, nor shall Producer represent having any authority to:
- 1. Hold oneself out as an SBLI employee, partner, joint venturer or associate;
 - 2. Hold oneself out as SBLI's agent or broker in any manner, or for any purpose, other than as specifically prescribed in this Agreement;
 - 3. Alter, modify, waive or change any terms, rates or conditions of any SBLI Product, advertisements, illustrations, receipts, contracts, questions, statements or answers on any SBLI Product application;
 - 4. Collect any premiums or payments on behalf of SBLI whatsoever, except initial premiums or additional annuity contributions;
 - 5. Bind SBLI on any SBLI Product application, unless provided for in a conditional receipt authorized by SBLI;
 - 6. Guarantee any premiums, interest rates, dividends or any provision unless guaranteed by the provisions of a SBLI Product; or
 - 7. Incur any debts or liabilities on SBLI's behalf.
- D. Certification: Producer certifies that he or she has never been convicted of a federal or state felony involving dishonesty or breach of trust; or if so, the Producer has received written authorization from the applicable state insurance commissioner specifically referencing Section 1033 of the Violent Crime Control and Law Enforcement Act of 1994, Subsection (e)(2) granting permission to work in the insurance industry.

II. Compensation

- A. Compensation: Producer agrees to receive compensation for services at a rate based on the schedule attached hereto (hereinafter the "Compensation Schedule"). All compensation and chargebacks will be based only upon SBLI Product sales completed after the Effective Date of this Agreement. Compensation earned will be paid to Producer in accordance with the attached Compensation Schedule. Chargebacks will be paid by Producer to SBLI. SBLI reserves the right to modify the Compensation Schedule, without Producer's consent, upon written notice.
- B. Forfeiture: If Producer engages in the conduct described below, Producer will forfeit the right to all compensation from and after that time, and all compensation otherwise payable to Producer will be SBLI's property:
- 1. Withhold or misappropriate any money or property belonging and/or payable to SBLI;
 - 2. Subject SBLI to liability due to Producer's misfeasance or malfeasance;
 - 3. Commit fraud or embezzlement;
 - 4. Fail to comply with any federal, state and local laws, regulations and/or rules;
 - 5. Fail to comply with SBLI's rules and regulations;
 - 6. Engage in conduct that is grounds for suspension, revocation or termination of Producer's insurance license in any state;

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7. Without SBLI's prior written consent, induce or try to induce any other Producer appointed by SBLI to end his/her relationship with SBLI;
 8. Fail to pay any indebtedness to SBLI upon demand; or
 9. Systematically replace SBLI's Products with other companies' policies.
- C. Refunds: Should SBLI for any reason refund any premium on any SBLI Product subject to this Agreement, Producer shall repay to SBLI, upon demand, any compensation received by Producer pertaining to that premium.

III. Debts

If Producer, or Producer's assignee(s), owes money to SBLI at any time for any reason:

1. Any amounts (including commissions) that Producer or Producer's assignee(s) must repay to SBLI are debts that are due and payable upon demand;
2. Interest may accrue and be payable on any debt beginning on the date of the event that creates the obligation of payment;
3. Interest shall be at the rate of 12% per annum (or such lesser rate which is the maximum rate permitted by law) and SBLI may also charge Producer costs and reasonable fees (including attorneys' fees and expenses) if the debt is referred to a third party for collection;
4. Any amounts that Producer or Producer's assignees owes to SBLI are and shall be secured by first lien against any compensation that may be or become due or payable to Producer or Producer's assignee(s), which first lien is hereby granted to SBLI by Producer and the lien hereby created shall not be extinguished by the termination of this Agreement;
5. Any amounts payable or that become payable to Producer hereunder shall be subject to a lien and right of setoff for any debt from Producer to SBLI whether then existing, contingent or not yet matured, all in such amounts as SBLI may reasonably determine;
6. Because Producer's commission earnings act as security (under the previous paragraph) for any amounts that Producer or Producer's assignee(s) owes to SBLI, Producer agrees that with respect to any Products to which this Agreement relates, Producer will not induce or try to induce the reduction or stoppage of premium flow, or the transfer of premiums (in whole or in part) to any other insurance company or to any other investment instrument, for so long as any amounts are owed to SBLI by Producer or any of Producer's assignee(s) (including after termination of this Agreement);
7. SBLI may recover any amounts advanced to Producer or Producer's assignee(s) or any amounts paid on Producer's behalf by SBLI or any amounts charged to Producer or Producer's assignee(s) under this Agreement from any commissions or other compensation due to Producer from SBLI but not yet paid. Additionally, SBLI may recover from Producer, without first exhausting its remedies at law, any amounts owed to SBLI by Producer or Producer's assignee(s) under this Agreement; and
8. Upon termination of this Agreement, Producer must promptly pay (no later than ten calendar days), any debts owed by Producer or Producer's assignee(s), including any chargebacks payable and remaining due, to SBLI. Repayment is required even for chargebacks made on or after the termination of this Agreement. The provisions of this subsection shall survive the termination of this Agreement.

IV. Term & Termination

- A. Term: The term ("Term") of this Agreement shall begin on the Effective Date and shall continue until terminated in accordance with this section. However, Sections III, IV, VII, XI, XII, XIII, and XIV will survive any termination of this Agreement.

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- B. **Voluntary Termination:** The Agreement may be terminated at any time by either Party, with or without cause, by providing a notice of termination to the other Party in accordance with Section XV of this Agreement. Neither Party shall commence suit against the other Party for improper termination if proper prior written notice is provided.
- C. **Automatic Termination:** This Agreement terminates automatically:
 - 1. Upon the revocation, termination or nonrenewal of Producer's license; or,
 - 2. Upon SBLI's dissolution or disqualification to do business under any applicable laws.

V. Territory

Producer may solicit business and collect initial premiums on behalf of SBLI in any state in which both Parties are licensed to transact insurance business.

VI. SBLI's Right to Reject Applications & Cancel or Rescind Products

SBLI reserves the right, in its sole discretion and without liability to Producer, to disapprove or reject any application submitted, to limit or restrict the amount or plan of any policy it shall issue, to require a higher premium than that applied for, to rescind any existing policy when appropriate, to alter or withdraw Products offered from time to time, and to introduce new Products.

VII. Intellectual Property, Trademarks & Confidentiality

Producer shall obtain SBLI's prior written consent before the use of any advertising material, brochure, letters, illustrations or training manuals relative to SBLI or its Products. Producer shall not use SBLI's logos or trademarks in any way without obtaining SBLI's prior written consent.

- A. **Customer Lists:** Producer acknowledges that the list of names and addresses of SBLI customers who purchase or have purchased any SBLI Product through Producer shall be owned fully and equally by both Parties. SBLI reserves the right to communicate directly with any of its customers produced by the Producer provided that, during the Term of this Agreement, it shall not solicit the same, for additional coverage or other Products or programs marketed by or offered by SBLI without first obtaining the written approval of Producer.
- B. **Proprietary Information:** All the information and materials provided by SBLI to Producer remain proprietary to SBLI, including but not limited to contracts, origination credit schedules, administrative manuals and any other operations manuals. Producer shall not disclose any such information or materials or use them except as may be required to carry out its obligations under this Agreement. All underwriting records, claim records, applications, claim forms and correspondence relative to the insurance provided under SBLI Products are the property of SBLI. Producer shall protect the confidentiality of all such documents and records. Any such material in the Producer's possession shall be promptly delivered to SBLI upon demand.
- C. **Confidentiality:** Except as authorized under this Agreement or by SBLI, Producer shall not directly or indirectly use, disseminate, refer or reveal to any other party the contents of any customer files, any list(s) of SBLI policyholders or any other proprietary information, either during the Term of this Agreement or at any time after its termination.

Producer shall not use or disclose any nonpublic personal information, including personally identifiable, financial, and health information ("Protected Information"), about individuals who seek to obtain insurance through Producer or who have a continuing relationship wherein the individuals have insurance through Producer, except as expressly authorized by the individual.

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VIII. Replacement

Producer shall not induce any SBLI customer to terminate, reduce or replace any existing SBLI policy or contract unless, after a suitability analysis, Producer can demonstrate that the replacement is in the best economic interests of the customer. Any such analysis shall include a comparison of cost indices under model NAIC cost disclosure regulations and a rate of return analysis if whole life insurance is involved. Disclosure of a new contestable period and suicide clause, if applicable, shall also be included.

IX. No Petition

The Parties acknowledge and agree that injunctive relief to restrain any threatened or further violation of this Agreement is appropriate and necessary since there may be no adequate remedy at law to protect unique assets and property rights. Producer may not commence or maintain any legal action against SBLI during any time period when it has received premiums for SBLI coverage and has failed to remit the same to SBLI.

X. Assignment

SBLI's rights and obligations under this Agreement may be assigned, delegated or assumed at any time upon written notice to Producer. Producer shall not assign any of its rights nor delegate any of its duties under this Agreement without SBLI's prior written consent.

XI. Governing Law & Forum Selection

This Agreement is signed by SBLI in Woburn, Massachusetts, and all matters arising out of or relating to this Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, without regard to any conflicts of law. The Parties acknowledge that this Agreement has a substantial legal nexus to Massachusetts.

All disputes, litigation, proceedings, or other legal actions (collectively, "Actions") that arise from or relate to this Agreement or the relationship between SBLI and Producer shall be exclusively commenced and resolved either in courts located in Middlesex County in the Commonwealth of Massachusetts or the United States District Court for the District of Massachusetts, Boston (Eastern Division) (collectively, "Massachusetts Courts").

Each Party irrevocably waives, to the fullest extent permitted by applicable law, any claim, defense, or objection it may now or hereinafter have against the laying of venue of any proceeding under this Agreement brought in Massachusetts Courts, including without limitation any assertion that any Action commenced in Massachusetts Courts under this Agreement has been brought in an inconvenient forum. The Parties further agree to the effectiveness of the service of process, summons, notice of document by registered U.S. mail, return receipt requested, addressed to the Party's last known address.

XII. Conflict of Law

If any term or provision of this Agreement shall be found to be void or unenforceable under any applicable law, such finding shall have no effect upon any other term or provision of the Agreement, which will be given full force and effect.

XIII. Indemnification

Producer shall at all times indemnify and hold harmless SBLI from any losses, damages, claims, judgments, settlements, attorneys' fees, expenses (including SBLI's legal expenses) and liability, of any character, type or description, arising out of any negligence, gross negligence, malfeasance, errors or omissions by Producer or by any of Producer's officers, employees, agents, independent

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contractors and sub-producers, if any.

XIV. Litigation

Producer shall not initiate any litigation related to SBLI or SBLI's Products in any dispute between itself and any applicant or SBLI policyholder without SBLI's prior written consent.

XV. Notice

All notices required under this Agreement shall be in writing, delivered by hand, U.S. mail or electronic mail, and any such notice shall be effective when received at the address specified below and deemed given upon receipt by the designated recipient at the address provided below. A Party may change the name or address of a designated recipient by giving written notice to the other Party.

If to SBLI: The Savings Bank Mutual Life Insurance Company of Massachusetts, P.O. Box 4048,
One Linscott Road, Woburn, MA, 01801

If to Producer:

Mailing Address: _____

Email Address: _____

XVI. Headings

The descriptive headings in this Agreement are for convenience of reference only and do not constitute a part of this Agreement.

XVII. Waiver

A waiver of any provision of this Agreement shall not be a waiver of any other provision hereunder. No waiver shall be binding unless executed in writing by the Party making the waiver.

XVIII. Amendments

SBLI may unilaterally amend this Agreement and/or the Compensation Schedule upon prior written notice to Producer.

XIX. Errors & Omissions Coverage

Producer shall obtain and maintain Errors & Omissions Professional Liability Insurance Coverage in compliance with SBLI's rules now in force and as may hereafter be revised. Producer shall provide SBLI with evidence of all coverages herein upon request.

XX. Entire Agreement

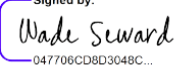
This Agreement, including any attachments, constitutes the entire agreement between the Parties and supersedes all prior agreements, representations and understandings of the Parties.

[Signature Page to Follow]

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IN WITNESS WHEREOF, this Agreement has been signed by the Parties.

SBLI

By:  Signed by:
047706CD8D3048C...

Date:

Producer

By:

Date:

General Agent or NMO

By:

Date:

Corporate Producer

By:

Date: